



U.S. Department
of Transportation

**Pipeline and
Hazardous Materials
Safety Administration**

APR 26 2005

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 14182

EXPIRATION DATE: May 31, 2005

1. GRANTEE: Chugach Electric Association, Inc.
Anchorage, AK
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the transportation in commerce of the materials listed in paragraph 6 in bulk packagings which exceed the quantity limitations when shipped by air. This exemption provides no relief from any regulation, including the FAA Flight Safety Standards, other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.101 Table, Column (9B) in that the quantity limitation for cargo aircraft only is exceeded; and 172.302(c) in that each portable tank is not required to be marked "DOT-E 14182".
5. BASIS: This emergency exemption is based on the application of Chugach Electric Association, Inc., dated April 20, 2005, submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant economic loss.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper shipping name	Hazard Class/ Division	Identification Number	Packing Group
Sulfuric acid	8	UN1830	II
Caustic alkali liquids, n.o.s. (Sodium hydroxide, Potassium hydroxide)	8	UN1719	II

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed are bulk containers (totes) authorized under DOT-E 10517.

b. OPERATIONAL CONTROLS -

(1) This exemption only authorizes the packaging described above to be transported by cargo aircraft from Anchorage International Airport to Chugach's Beluga Power Plant, which is located across Cook Inlet from Anchorage, AK and is not accessible by land. The flight time is approximately 20 minutes.

(2) The following air carrier is authorized under the terms of this exemption:

Arctic Circle Air, Anchorage, AK

(3) Up to four (4) flights are authorized from Anchorage, AK to the Beluga Power Plant.

(4) The packaged material must be properly loaded and secured during transportation in accordance with the applicable FAA regulations.

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8. SPECIAL PROVISIONS:

a. A current copy of this exemption and DOT-E 10517 must be maintained at each facility where the package is offered or reoffered for transportation.

b. MARKING - The marking requirement of § 172.302(c) is waived for the "DOT-E 14182" mark on each packaging.

c. The flight path must be over non-populated in sparsely areas only.

d. The flight crew must be knowledgeable in actions to be taken in the event of an in-flight emergency involving the Hazardous Materials.

9. MODES OF TRANSPORTATION AUTHORIZED: Cargo aircraft only.

10. MODAL REQUIREMENTS: A current copy of this exemption and DOT-E 10517 must be carried aboard the aircraft used to transport packages covered by this exemption. The shipper must furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this exemption must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

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Continuation of DOT-E 14182

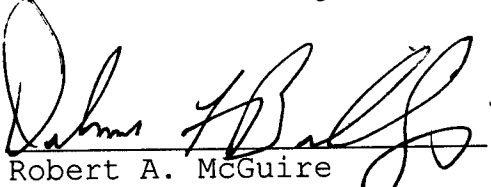
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Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this exemption are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this exemption must notify the Associate Administrator for Hazardous Materials Safety -- OHMEA, in writing, of any incident involving a package, shipment or operation conducted under terms of this exemption.

Issued in Washington, D.C.:


Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

DATE

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, 400 Seventh Street, SW, Washington, D.C. 20590. Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: AM